

School: Heartwood Primary School

Date: 24/02/2022

Report: Remote consultation – Spring Term Agenda

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Consultation details

1. Staff changes - housekeeping
2. Review of GDPR status, compliance documents; website and internal documentation
3. Information security and e-learning training
4. Supplier due diligence
5. Data retention
6. Raising staff awareness and audit walks
7. DPE events and webinars
8. Record of processing (RoP) update
9. Q&As

1. Staff changes - housekeeping

Reminder to **set new staff** up on the DPE website and **remove leavers**: DPE dashboard>users>add staff, either manually or bulk import. Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education.

For new staff if not already, consider including DPE's e-learning GDPR training as part of the **induction process**.

2. Review of GDPR status, compliance documents, website and internal documentation

By now you should have all of your main updated compliance documents. Although the documents below are not all statutory to have on your website, for transparency and ease of managing these documents, it is good practice to have a GDPR section on your website and consider including the following documents:

Website documents:

- GDPR policy
- Privacy notice(s)
- SAR and data breach procedure
- FOI and publication scheme (see note below)

Other useful documents to review and check that you have are:

- Work away from school policy
- Review of consent documentation. Consent guidance and consent withdrawal can also be added to the GDPR section of the school website

For data retention (section 5 below) there is a records management best practice area and documentation for records management and Information classification. If your data protection policy refers to these documents then you should also have these documents in place: <https://dataprotection.education/best-practice-library/best-practice/records-management>

Publication Scheme - LM recently worked with the school to support producing their Publication Scheme. The school used the DPE model template and has adapted this to reflect the actual documents and policies available at Heartwood.

Review of GDPR Compliance Documents on the school's website

Prior to the meeting LM checked the school's published policy documents and confirmed that there is a dedicated section for Data Protection documents and that the GDPR Policy was updated in February 2022 and includes Covid guidance.

The Privacy Notice, although it does not include a date for when it was issued, appears to be current and includes Covid guidance.

In line with current ICO advice, perhaps the school would consider introducing a child friendly Privacy Notice. LM will attach DPE's versions of their child friendly Privacy Notice to the email including this report.

Heartwood also has a policy for the Protection of Biometric Information of Children, and this is dated March 2022. LM confirms that this policy is also listed in the school's Publication Scheme.

3. Supplier due diligence

The controller is responsible for assessing that any third party processors (suppliers etc) are competent to process personal data in line with the UK GDPR's requirements. This assessment should take into account the nature of the processing and the risks to the data subjects. This is because Article 28(1) says a controller must only use a processor that can provide "sufficient guarantees" (in particular in terms of its expert knowledge, resources and reliability) to implement appropriate technical and organisational measures to ensure the processing complies with the UK GDPR and protects the rights of individuals.

Things to consider:

- Privacy notice/third party/supplier list - is this up to date, do you know all the organisations/suppliers you share information with?
- Due diligence form - this can be sent to new suppliers
- Make sure that current and future contracts include data protection
- Risks - what you should be thinking of when purchasing and using new products and suppliers
- If using GDPRiS for maintaining suppliers, make sure that this is updated and accurate

DPEs best practice area and the due diligence form for suppliers is located here:

<https://dataprotection.education/index.php/best-practice-library/best-practice/due-diligence-best-practice-area>

4. Information security (phishing simulation) and e-learning training

DPE have a number of resources for information security: <https://dataprotection.education/best-practice-library/documents/information-technology-security>

If not already, staff should complete the **Stay Safe online NCSC training**. This is not only beneficial for the organisation but also for staff when accessing personal information online i.e. personal banking: <https://dataprotection.education/courses-heading/stay-safe-online-ncsc>

There is also an information classification best practice area: <https://dataprotection.education/index.php/best-practice-library/best-practice/information-classification>

And DPE will be releasing a phishing simulation shortly.

In addition, you can check out the National Cyber Security Centre website: ncsc.gov.uk which has useful resources and tips for schools regarding cyber security:

- **School resources:** <https://www.ncsc.gov.uk/section/education-skills/schools>
- **Governor Qs for schools:** <https://www.ncsc.gov.uk/information/school-governor-questions>

Check out the DPE news articles on the Education sector now being at the highest risk of cyber attacks- <https://dataprotection.education/news/166-information-security/203-the-education-sector-now-at-highest-risk-of-cyber-attacks>

<https://dataprotection.education/news/166-information-security/220-assessing-the-state-of-your-data-security>

5. Data retention

Organisations can set deadlines, document and justify timeframes they have set for retaining data. There are **two key factors**: the **purpose** for processing the data, and any **legal or regulatory requirements** for **retaining it**. One of your purposes will need to apply for you to continue to store the data. Data should not be held for longer than is needed. You shouldn't just keep data just in case you may need it in the future.

Different data systems to consider when reviewing data retention:

- Emails
- MIS
- Website
- Network/CLOUD

Tools to support you:

- There are a number of tools to support you with data retention: [IRMS](#) tool kit
- DPE's [record management](#) best practice area and records management policy
- [DfE](#) Annual review of school records and safe data destruction checklist

- [ICO](#)
- DPEs [Record of Processing \(RoP\)](#)
- Your third party list within your privacy notice
- Laws and regulations (for example, financial regulations and handbooks and limitations act:
<https://www.legislation.gov.uk/ukpga/1980/58/legislation>:
<https://www.legislation.gov.uk/ukxi/2021/833/contents/made>)
- [Microsoft retention tools](#)
- [Google retention tools](#)
- [MIS retention tools](#)
- Network scanning and retention tools - speak to your IT department

6. Raising staff awareness and audit walks

There is now a **Making the rounds electronic audit walk** that can be completed by you in school. This tool will also be used by consultants when we visit. By completing electronically, allows you to log and keep a record and is accessible via the My Activities tab on the DPE website: <https://dataprotection.education/courses-heading/making-the-rounds-log>

Why not use staff briefings and having a monthly focus i.e. clear desks and locking laptops etc. This is an ideal way to raise awareness and keep staff focused with the latest data protection issues.

7. DPE events and workshops

Check out the latest webinars and workshops from the My Activities section of the DPE website. <https://dataprotection.education/courses-heading/dpe-events>

8. Record of Processing (RoP) - and DPE methodology

All Finance related RoPs which were uploaded to the school's RoP Manager have now been completed. If you find that you require further RoPs you can visit the Generic School in the RoP Manager, where you will see a selection. You can then copy any relevant RoPs into Heartwood's RoP Manager, ready for tailoring.

Using a risk-based approach, LM has uploaded some HR RoPs to the RoP Manager for the school to review and tailor to reflect the actual practice at Heartwood.

For information, the Generic School in the RoP Manager has many populated RoPs, under the headings of Pupil Management, Commercial & Community, Management of the School as well as Finance and HR.

9. Q&As

The school has recently completed its Publication Scheme and queried if they could make a charge for documents requested.

LM ran through the advice in the ICO's Definitions Document, which states that the school will need to include details of charges to be made in their Charging Policy. It is also important to bear in mind that the school should have a clear methodology underpinning the amount charged. I suggest that this is presented to governors for their approval.

Acle St Edmund has a table of charges in their Publication Scheme, which you could review for reference purposes.